

In the
Court of Appeals
Sixth Appellate District of Texas at Texarkana

No. 06-26-00115-CV

IN RE UT HEALTH JACKSONVILLE HOSPITAL

Original Mandamus Proceeding

Before Stevens, C.J., van Cleef and Rambin, JJ.
Memorandum Opinion by Justice Rambin

MEMORANDUM OPINION

On September 28, 2026, "Jacksonville, Hospital D/B/A UT Health Jacksonville Hospital" filed a petition for a writ of mandamus in which it asked the Twelfth Court of Appeals to order the 369th Judicial District Court of Cherokee County, Texas, to vacate its orders requiring "unnecessary and intrusive inspection of hospital computer systems." Two of the three justices on that court recused themselves, and for that reason and pursuant to Section 73.001 of the Texas Government Code, the Texas Supreme Court transferred the petition to this Court by order dated October 2, 2026.[1]

The discovery dispute on which this petition is based began well before December 23, 2025, on which date the trial court granted a motion to compel, filed by Natashia Griffith, Individually and as Guardian of Cynara Griffith and as Next Friend of T.G. and L.M., Minors, the real party in interest (Griffith). The order compelled UT Health to allow inspection of its electronic records, record audit trails associated with Cynara, and directed that the inspection be conducted no later than February 24, 2026. UT Health filed a motion to reconsider, and Griffith filed a motion to enforce. On May 7, 2026, the trial court granted the motion to enforce, directing that the inspection be conducted by June 30, 2026. Griffith later filed a motion to compel seeking an extension of the inspection deadline to October 1, 2026, to compel the recording of the inspection, and the creation of a post-inspection audit trail. The trial court initially granted the requested extension but denied the remaining requested relief. Griffith filed

[1]Because this petition for a writ of mandamus was transferred to this Court from the Twelfth Court of Appeals pursuant to a Texas Supreme Court docket equalization order, *see* TEX. GOV'T CODE ANN. § 73.001 (Supp.), we apply the precedent of the Twelfth Court of Appeals in deciding this case to the extent that it conflicts with our own, *see* TEX. R. APP. P. 41.3.

a motion for clarification, which was heard on September 17, 2026, and a motion for reconsideration of the order denying recording and creation of an audit trail, which was heard on September 23, 2026. After the hearing on the motion for reconsideration, the trial court signed a detailed order on September 24, 2026, granting Griffith's motion for clarification, ordering that the inspection be video recorded and that a post-inspection audit trail be created.

UT Health filed its mandamus petition on September 28, 2026, the same date the inspection was set to occur. We requested a response from Griffith. In her response, she confirmed that the records inspection was completed on September 28, 2026.

Accordingly, we dismiss UT Health's petition as moot.[2] *See Dow Chem. Co. v. Garcia*, 909 S.W.2d 503, 505 (Tex. 1995) (orig. proceeding).

Jeff Rambin
Justice

Date Submitted: October 29, 2026
Date Decided: October 30, 2026

[2]UT Health also filed a motion for emergency stay seeking to maintain the status quo and to preserve this Court's jurisdiction to consider the merits of its original proceeding. Because we dismiss UT Health's mandamus petition, we deny its motion for emergency stay as moot.